

U.S. export controls on advanced AI chips to China, 2022–2026

Chronology, actor positions, trigger indicators, scenarios — a public-source method sample

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confirmed primary source directly supports the claim **reported** reputable secondary source

inferred analyst judgment

How this was produced

Sources were collected first by parallel research passes (one per section), then every claim was checked against its cited document by a separate verification pass that could downgrade or drop it. Items that failed verification were removed. Scenarios and “what a change would signal” lines are analyst judgment and are labeled **inferred**. Several AI models worked the task in fixed roles; the author supervised, resolved disagreements, and signed off. Source tally: confirmed: 89, reported: 46, inferred: 3.

Bottom line

Since October 2022 the United States has built a layered control regime on advanced AI chips and the tools that make them. The first Bureau of Industry and Security (BIS) interim final rule created new control entries (ECCNs 3A090 and 4A090) for advanced chips and added semiconductor manufacturing equipment (SME) to the Commerce Control List, with new license requirements for Chinese supercomputer and advanced-fab end uses S1 **confirmed**. BIS tightened the regime in October 2023, December 2024 and January 2025 S6 S9 S12 **confirmed**. Since 2025 the executive branch has partly reversed course: it rescinded enforcement of the AI Diffusion Rule S15 **confirmed**, licensed H20 sales S16 S18 **confirmed**, and in January 2026 moved H200/MI325X-class chips to case-by-case review S25 **confirmed**. One day later a Section 232 proclamation put a 25% tariff on a narrow class of advanced chips not intended for U.S. use S26 **confirmed**; this tariff is the reported vehicle for the U.S. government's 25% share of H200 sale proceeds S303 **reported**. Actual flows remain small: Nvidia reported no data-center Hopper shipments to China in the quarter ended 2026-04-26 S206 **confirmed**, and BIS Under Secretary Jeffrey Kessler called H200 shipments “trivial” in July 2026 S31 **reported**. China has responded with measures including mineral export controls S5 S10 S23 **confirmed**, counter-listings of U.S. entities S30 **confirmed**, an antitrust case against Nvidia S11 **confirmed**, and

reported guidance steering firms away from Nvidia parts [S19](#) [reported](#). A Busan truce in November 2025 suspended the sharpest measures on both sides [S24](#) [confirmed](#); the U.S. Affiliates Rule suspension and China's two suspensions all lapse between 2026-11-09 and 2026-11-27 [S203](#) [S210](#) (confirmed/reported), while MOFCOM's April 2025 rare-earth controls remain in force. Inferred: the next twelve months turn on the September Xi visit, the November truce deadlines, and whether Congress codifies limits in the FY2027 National Defense Authorization Act (NDAA).

Chronology

- 2022-10-07 — BIS interim final rule adds advanced chips (3A090/4A090) and SME to the CCL, with new license requirements for China supercomputer and advanced-fab end uses [S1](#) [confirmed](#)
- 2022-12-15 — BIS adds 36 entities, including YMTC, to the Entity List, effective 2022-12-16 [S32](#) [confirmed](#)
- 2023-03-31 — Japan METI announces plans to add 23 types of semiconductor manufacturing equipment to its export-license list [S2](#) [confirmed](#)
- 2023-05-21 — CAC says Micron failed cybersecurity review; critical infrastructure operators told to stop buying [S3](#) [confirmed](#)
- 2023-06-30 — Dutch regulation (effective 2023-09-01) requires licenses for advanced DUV tools including ASML NXT:2000i and later [S4](#) [confirmed](#)
- 2023-07-03 — MOFCOM/GAC impose gallium and germanium export licensing from 2023-08-01 [S5](#) [confirmed](#)
- 2023-08-09 — Executive Order 14105 directs Treasury to build an outbound-investment program covering semiconductors, quantum and AI in China [S34](#) [confirmed](#)
- 2023-09-05 — TechInsights teardown finds the Huawei Mate 60 Pro's Kirin 9000s made on SMIC's 7nm-class N+2 process without EUV [S36](#) [reported](#)
- 2023-10-17 — BIS adds a performance-density threshold and extends chip and SME license requirements to 21 more arms-embargoed countries and to firms headquartered in Country Group D:5 (arms-embargoed) countries or Macau [S6](#) [confirmed](#)
- 2023-10-20 — China imposes graphite export controls effective 2023-12-01 [S7](#) [confirmed](#)
- 2024-05-07 — Commerce revokes certain export licenses to a China customer (Intel 8-K) [S37](#) [confirmed](#); reported to be Huawei, with Qualcomm licenses also revoked [S38](#) [reported](#)
- 2024-08-15 — MOFCOM/GAC control antimony and superhard materials from 2024-09-15 [S8](#) [confirmed](#)
- 2024-09-06 — BIS interim final rule adds controls on quantum, GAAFET and advanced-node items [S39](#) [confirmed](#); the Netherlands expands its SME licensing to more DUV models [S40](#) [confirmed](#)

- 2024-10-28 — Treasury issues the final outbound-investment rule implementing EO 14105, effective 2025-01-02 [S35](#) [confirmed](#)
- 2024-11-11 — Commerce sends TSMC an "is informed" letter (a BIS notice imposing a license requirement) restricting 7nm-and-below AI chips for China after a TSMC-made die was found in Huawei's Ascend 910B [S43](#) [S45](#) [reported](#)
- 2024-12-02 — BIS adds 24 SME types and high-bandwidth memory (HBM) to the control list, expands the foreign-direct-product rule (FDPR) and adds 140 entities to the Entity List [S9](#) [confirmed](#)
- 2024-12-03 — MOFCOM Announcement 46 bans in principle gallium, germanium, antimony, superhard exports to the U.S. [S10](#) [confirmed](#)
- 2024-12-09 — SAMR opens antimonopoly investigation into Nvidia [S11](#) [confirmed](#)
- 2025-01-13 — BIS AI Diffusion Rule: worldwide tiered chip licensing and first control on model weights [S12](#) [confirmed](#)
- 2025-01-15 — BIS issues the foundry due-diligence rule and adds Sophgo, Zhipu AI and others to the Entity List [S46](#) [S48](#) [S49](#) [confirmed](#); the Netherlands adds measuring and inspection equipment to its controls from 2025-04-01 [S42](#) [confirmed](#)
- 2025-01-20 — DeepSeek releases R1 [S50](#) [confirmed](#); on 2025-01-31 U.S. officials are reported to be probing whether it obtained restricted chips [S51](#) [reported](#)
- 2025-02-27 — Singapore charges three men with fraud over servers routed to Malaysia [S52](#) [confirmed](#)
- 2025-03-25 — BIS adds 80 entities to the Entity List, including Inspur units [S55](#) [S56](#) [confirmed](#)
- 2025-04-04 — MOFCOM/GAC control seven medium and heavy rare earths [S13](#) [confirmed](#)
- 2025-04-09 — U.S. informs Nvidia a license is required to export H20-class chips to China and D:5 countries, indefinitely [S14](#) [confirmed](#); AMD's MI308 is likewise covered [S120](#) [confirmed](#)
- 2025-05-13 — BIS rescinds AI Diffusion Rule enforcement; warns use of Huawei Ascend chips risks violating controls [S15](#) [confirmed](#)
- 2025-07-14 — Nvidia says it will refile for H20 licenses with U.S. assurances [S16](#) [confirmed](#)
- 2025-07-31 — CAC summons Nvidia over alleged H20 "backdoor" risks [S17](#) [confirmed](#)
- 2025-08-05 — DOJ arrests two in the ALX Solutions chip-smuggling case [S53](#) [confirmed](#)
- 2025-08-12 — Bloomberg reports Beijing guidance to avoid H20 chips [S19](#) [reported](#)
- 2025-08-27 — Nvidia's 10-Q says U.S. officials expect the government to receive 15% of H20 China revenue, that no regulation codifies this, and that licenses were granted in August 2025 [S18](#) [confirmed](#)
- 2025-08-29 — BIS revokes Validated End-User (VEU) status for the China fabs of Samsung, SK hynix and Intel Dalian [S20](#) [confirmed](#)
- 2025-09-12 — BIS adds GMC Semitech, Jicun and others to the Entity List [S57](#) [confirmed](#)

- 2025-09-15 — SAMR says preliminary finding that Nvidia violated Anti-Monopoly Law; further probe [S21](#) confirmed
- 2025-09-29 — BIS Affiliates Rule extends Entity List restrictions to 50%-owned entities [S22](#) confirmed
- 2025-10-09 — MOFCOM Announcements 61/62 impose extraterritorial rare-earth controls with chip-related case-by-case review [S23](#) confirmed
- 2025-11-01 — Busan truce: U.S. suspends the Affiliates Rule for one year; China suspends its October 9 controls (via Announcements 70 and 72) and issues general licenses [S24](#) confirmed
- 2025-12-08 — DOJ announces 'Operation Gatekeeper', a ~\$160m H100/H200 smuggling case [S54](#) confirmed
- 2026-01-13 — BIS final rule moves H200/MI325X-class exports to China to case-by-case review with conditions [S25](#) confirmed
- 2026-01-14 — Section 232 proclamation: 25% tariff on narrow class of advanced chips from 2026-01-15 [S26](#) confirmed
- 2026-01-21 — HFAC advances the AI OVERWATCH Act (H.R. 6875) by 42-2 [S58](#) confirmed
- 2026-02 — U.S. grants Nvidia licenses for small H200 amounts; no revenue to date [S27](#) confirmed
- 2026-02-12 — Applied Materials agrees to pay about \$252m to settle BIS export-control charges [S59](#) confirmed
- 2026-04-09 — BIS extends the foundry due-diligence 'authorized designer' deadline to 2026-12-31 [S61](#) confirmed
- 2026-05-17 — White House summit fact sheet contains no semiconductor or export-control provisions [S28](#) confirmed
- 2026-05-29 — Japan's METI reportedly adds advanced-packaging equipment to its export-control list [S62](#) reported
- 2026-05-31 — BIS guidance: license still required for D:5/Macau-headquartered entities anywhere [S29](#) confirmed
- 2026-06-22 — MOFCOM adds 10 U.S. military-related entities to Export Control Restricted Namelist [S30](#) confirmed
- 2026-07-14 — At a House Foreign Affairs Committee (HFAC) hearing, BIS Under Secretary Kessler says H200 shipments to China have begun but are "very few" and "trivial" [S31](#) reported; the same hearing surfaced the pause in Entity List additions since October 2025 [S31](#) [S306](#) reported

Actor positions

U.S. Commerce / BIS. BIS now reviews H200/MI325X-class licenses to China case-by-case, conditioned on adequate U.S. supply, purchaser compliance procedures and third-party testing in the

U.S. [S101](#) [confirmed](#). Its May 2026 guidance keeps a license requirement on Chinese-parented entities offshore [S29](#) [confirmed](#), and Commerce Secretary Howard Lutnick told appropriators BIS is "the frontline" against China obtaining top chips while seeking funds for 290 enforcement agents [S103](#) [reported](#).

White House. President Trump announced the H200 opening himself, with a 25% share paid to the U.S. [S105](#) [reported](#). After the May summit he said China chose not to buy because it wants to develop its own chips [S106](#) [reported](#). White House AI adviser David Sacks opposed the AI OVERWATCH Act as restricting presidential discretion [S107](#) [reported](#).

Congress. HFAC advanced the AI OVERWATCH Act 42-2 to subject top-chip exports to congressional review [S108](#) [confirmed](#). Rep. John Moolenaar, chair of the House Select Committee on the CCP, has pressed on H200 volumes, ASML DUV tools and the foundry due-diligence rule [S109](#) [S110](#) [S111](#) [confirmed](#). Reps. Gregory Meeks and Gabe Amo called the 25% share "likely illegal" under the Export Control Reform Act (ECRA) [S112](#) [confirmed](#), and Sen. Elizabeth Warren and six other Democratic senators wrote against H200 sales [S113](#) [confirmed](#). Sen. Jim Banks introduced the Senate AI OVERWATCH Act, reportedly folded with the Chip Security and MATCH Acts into the NDAA manager's amendment [S114](#) [reported](#).

Nvidia / AMD. Nvidia's China share of revenue fell from about 19% to about 9% in fiscal 2026 [S115](#) [confirmed](#); it took a \$4.5bn H20 charge and booked only about \$60m of H20 revenue [S116](#) [confirmed](#), and it excludes China data-center revenue from guidance [S118](#) [confirmed](#). CEO Jensen Huang argues for selling so that the world builds on U.S. technology [S119](#) [reported](#). AMD holds MI325X licenses but does not know whether China will allow imports [S120](#) [confirmed](#); it booked some MI308 China sales in Q4 2025 and guided about \$100m for Q1 2026 [S121](#) [reported](#).

Allied tool makers and governments. ASML still guides China at about 20% of sales [S123](#) [confirmed](#); its CEO warned tighter curbs speed China's own tools [S124](#) [reported](#). The Dutch trade minister called forced alignment "undesirable" [S125](#) [reported](#). Per call coverage, TSMC made no China or export-control statements on its Q2 call [S122](#) [reported](#).

PRC government. MOFCOM says the U.S. "has repeatedly abused export controls" [S126](#) [confirmed](#) and has counter-listed U.S. entities [S30](#) [confirmed](#). The MFA has answered H200 questions with generic lines — "mutual benefit through cooperation" and "China has made clear its position more than once" — without detail [S128](#) [S129](#) [confirmed](#). Reports say customs were told to block H200 imports and Beijing later approved limited purchases [S130](#) [reported](#).

Chinese industry. Huawei's chairman said U.S. controls forced its chip push [S131](#) [reported](#); SMIC says overseas customers are shifting orders to China-based fabs and reports its first \$3bn quarter [S132](#) [reported](#); Cambricon revenue rose about 160% year on year [S133](#) [reported](#).

Other U.S. voices. Anthropic CEO Dario Amodei called H200 sales "a big mistake" [S134](#) [reported](#); SIA opposes mandated on-chip security mechanisms in the Chip Security Act [S135](#) [confirmed](#).

Trigger indicators

1. BIS advanced-computing rulemaking — federalregister.gov BIS feed and reginfo.gov — inferred: a Blackwell-class case-by-case rule signals loosening; re-tightened thresholds, or codification of the 25% share and the reported 50% cap on China volumes relative to U.S. sales [S302](#), signal tightening — no later BIS change to the China license-review policy for advanced-computing items found in a Federal Register search through 2026-08-18 [S201](#) [inferred](#); the 2026-04-09 rule only extended the foundry due-diligence deadline [S224](#) [confirmed](#); formal AI Diffusion rescission and Affiliates Rule return listed as pending H2-2026 [S202](#) [reported](#).
2. Affiliates Rule suspension cliff — Federal Register RIN 0694-AK34, bis.gov — inferred: extension means the truce holds; lapse means escalation and likely MOFCOM snap-back — suspension in force since 2025-11-10 and ending 2026-11-09, with the rule snapping back 2026-11-10 [S203](#) [confirmed](#); no extension published as of the mid-August 2026 reviews [S202](#) [reported](#).
3. H200 shipment volumes and offshore enforcement — HFAC/Senate hearings, bis.gov — inferred: rising counts or a Blackwell SKU means executive loosening; a first penalty on an offshore Chinese-parented buyer means hardening — shipments "trivial" as of 2026-07-14 [S204](#) [reported](#); headquarters-based license requirement restated 2026-05-31 [S205](#) [confirmed](#).
4. Nvidia/AMD China disclosures — investor.nvidia.com, ir.amd.com, EDGAR — inferred: first booked H200 revenue means both governments' approvals operate; continued exclusion means stall — no Hopper shipments to China in the quarter ended 2026-04-26 and no China compute in guidance [S206](#) [S207](#) [confirmed](#), with shipments reported to have begun by July [S204](#) [reported](#); AMD Q2 2026 results silent on China [S208](#) [confirmed](#). Next check: Nvidia's next quarterly release (late August 2026) [S206](#) [inferred](#).
5. Beijing's H200 import approvals — MIIT/NDRC releases, MOFCOM remarks, wire reporting — inferred: a published quota or domestic-chip ratio means an institutionalized "buy Chinese" condition; a blanket ban means retaliation — reported cap under 200,000 chips, training only; no official document [S209](#) [reported](#).
6. MOFCOM rare-earth and gallium suspensions — english.mofcom.gov.cn — inferred: extension before 2026-11-10 means truce holds; silence or licensing slowdowns mean leverage re-applied — Announcement 70 suspended to 2026-11-10 and Announcement 72 to 2026-11-27, which lift the October 9 controls for now [S210](#) [reported](#); summit fact sheet commits China on named minerals but not chips [S211](#) [confirmed](#).
7. Chinese counter-listings — MOFCOM spokesperson page — inferred: listing U.S. chip or tool firms, not defense firms, means direct retaliation on semiconductor controls — 10 U.S. military-related entities added 2026-06-22 [S212](#) [confirmed](#).
8. Analog-IC anti-dumping probe — MOFCOM Trade Remedy Bureau — inferred: duties mean escalation; extension means held in reserve — due by 2026-09-13 with possible six-month extension [S213](#) [reported](#).

9. SAMR Nvidia case — samr.gov.cn, Nvidia filings — inferred: a fine timed to U.S. moves means retaliation channel active — no final decision; still an open risk in Nvidia's 10-Q [S214](#) [reported](#).
10. SMIC/Huawei capability — SMIC results, Huawei newsroom — inferred: 5nm-class volume or 950DT on schedule weakens the controls' bite — SMIC Q2 revenue \$3.006bn, utilization 93.7% [S215](#) [reported](#); Ascend 950DT due Q4 2026 [S216](#) [reported](#).
11. Allied tool controls — Dutch notices, ASML results — inferred: Dutch licensing of NXT:1965i widens the allied gap; new Dutch limits or a U.S. FDPR move tightens alignment — Moolenaar letter flags possible Q4 2026 deliveries [S217](#) [reported](#); MOFCOM's February 2026 listing of 20 Japanese entities shows the counter-listing tool in use, though those listings were tied to Japan's "remilitarization", not to toolmakers [S218](#) [confirmed](#).
12. FY2027 NDAA — congress.gov S.4784/H.R. 8800 — inferred: enactment with chip titles constrains executive licensing; stripping in conference preserves discretion — House passed 216-212; Senate floor stalled [S219](#) [reported](#); manager's amendment includes AI OVERWATCH, Chip Security, MATCH [S220](#) [reported](#); MATCH Act introduced 2026-04-13 [S221](#) [confirmed](#).
13. Summit calendar — whitehouse.gov, PRC readouts — inferred: a joint statement extending the November suspensions means chip controls have formally entered the bargaining — Xi visit set for 2026-09-24 [S222](#) [reported](#).
14. WTO DS615 — wto.org — inferred: a panel request means legal escalation — dormant since 2024-12-27 [S223](#) [confirmed](#).
15. Foundry due-diligence deadline — Federal Register RIN 0694-AJ98 — inferred: another extension means softness; enforcement tightens the foundry-diversion channel — deadline moved to 2026-12-31 [S224](#) [confirmed](#).

Scenarios (next 12 months)

This whole section is inferred analyst judgment, conditional on the data above.

A. Managed licensing continues. Would have to be true: the September Xi visit or later contacts extend the Busan truce before the November deadlines; the administration prefers trade diplomacy to new Entity List or SME actions; Beijing drips H200 approvals while favoring domestic chips; Congress does not enact binding review [S315](#) [inferred](#). Confirmations: BIS extends the Affiliates suspension and MOFCOM extends Announcement 70; Nvidia shows small non-zero China revenue or continued exclusion without a formal ban; no reversion of H200-class chips to presumption of denial; NDAA conference softens AI OVERWATCH [S315](#) [inferred](#). Disconfirmations: a rule re-imposing presumption of denial or revoking licenses; MOFCOM reactivating the October 9 measures; a Blackwell-derived SKU moved to case-by-case [S315](#) [inferred](#). Baseline facts: case-by-case regime and 25% tariff in place [S301](#) [S303](#) [confirmed](#); 50% volume cap and Blackwell exclusion [S302](#) [reported](#); Nvidia assumes no China compute revenue [S307](#) [confirmed](#).

B. Renewed tightening. Would have to be true: NDAA enacted with AI OVERWATCH, Chip Security and MATCH largely intact; or November deadlines pass without extension after a failed Xi visit; or a diversion revelation forces enforcement [S316](#) [inferred](#). Confirmations: NDAA signed with binding review; BIS resumes Entity List additions or lets the Affiliates suspension expire on 2026-11-09; new SME rules or allied servicing limits; H200 licenses paused with new Nvidia/AMD charges [S316](#) [inferred](#). Disconfirmations: both suspensions extended around the Xi visit; conference strips export-control titles; no Entity List action past November [S316](#) [inferred](#). Baseline facts: manager's amendment holds the three bills [S313](#) [reported](#); a pause in Entity List additions since October 2025 reported [S31](#) [S306](#) [reported](#); offshore-headquarters guidance in force [S305](#) [confirmed](#).

C. Broad de-escalation. Would have to be true: the White House treats chip access as tradeable; Beijing lifts customs friction and buys at scale; China converts one-year suspensions into longer commitments; SAMR closes the Nvidia case [S317](#) [inferred](#). Confirmations: BIS raises thresholds above H200 or approves a named Blackwell derivative; Nvidia reports material China revenue; MOFCOM rescinds rather than suspends the October 9 announcements; multi-year Affiliates and tariff pauses [S317](#) [inferred](#). Disconfirmations: AI OVERWATCH-style review enacted; new Chinese listings aimed at U.S. chip firms; Blackwell still barred and shipments still "very few" after the visit [S317](#) [inferred](#). This is judged less likely than A because chips were kept off the May agenda and Congress is moving to codify limits [S312](#) [S317](#) (confirmed/inferred); China pledged at Busan to terminate its investigations of U.S. semiconductor firms [S311](#) [confirmed](#), but no SAMR closure of the Nvidia case has been reported [S214](#) [reported](#).

What this sample does not do

- It uses no insider or private sources; every claim traces to a public primary or secondary item in the source appendix below.
- It assigns no numeric probabilities to the scenarios; they are conditional judgments ordered by judged likelihood only, not forecasts.
- It was not commissioned by any party and reflects no client interest.
- Data cutoff is 2026-08-18; events after that date are not covered. The chronology is selective, not exhaustive — for example, Nvidia's A800/H800 China-specific chips (2022–2023), the reported January 2023 U.S.–Japan–Netherlands understanding, and the FY2026 NDAA chip-provision debates are not treated separately.

Source appendix

Each entry: id · confidence · date — claim · source. Ids match the [S#] cites above.

Chronology

1. **S1** confirmed 2022-10-07 — BIS issued an interim final rule adding advanced computing chips (ECCN 3A090/4A090) and semiconductor manufacturing equipment to the Commerce Control List and imposing new license requirements for supercomputer and advanced-fab end uses in China.
Implementation of Additional Export Controls: Certain Advanced Computing and Semiconductor Manufacturing Items; Supercomputer and Semiconductor End Use; Entity List Modification · Federal Register (BIS) · 2022-10-13
2. **S2** confirmed 2023-03-31 — Japan's METI announced plans to add 23 types of advanced semiconductor manufacturing equipment to its export-license list.
Press Conference by Minister Nishimura (Excerpt), March 31, 2023 · Japan Ministry of Economy, Trade and Industry · 2023-03-31
3. **S3** confirmed 2023-05-21 — The CAC announced that Micron products sold in China failed its cybersecurity review and directed operators of critical information infrastructure to stop purchasing them.
· Cyberspace Administration of China · 2023-05-21
4. **S4** confirmed 2023-06-30 — The Dutch government published a ministerial regulation, effective 2023-09-01, requiring export licenses for advanced semiconductor manufacturing equipment, including ASML's TWINSCAN NXT:2000i and later immersion DUV systems.
Statement regarding export control regulations Dutch government · ASML · 2023-06-30
5. **S5** confirmed 2023-07-03 — MOFCOM and GAC issued Announcement No. 23 of 2023 imposing export licensing controls on gallium- and germanium-related items effective 2023-08-01.
MOFCOM Regular Press Conference (July 6, 2023) · PRC Ministry of Commerce · 2023-07-06
6. **S6** confirmed 2023-10-17 — BIS released two interim final rules updating the October 2022 controls: a new 'performance density' threshold for chips (3A090) and expansion of chip and SME license requirements to 21 additional arms-embargoed countries and to companies headquartered in 15 countries and Macau.
Commerce Strengthens Restrictions on Advanced Computing Semiconductors, Semiconductor Manufacturing Equipment, and Supercomputing Items to Countries of Concern · BIS · 2023-10-17
7. **S7** confirmed 2023-10-20 — China imposed export licensing controls on certain graphite items (including high-purity synthetic graphite and natural flake graphite) effective 2023-12-01.
Ministry of Commerce Holds Regular Press Conference (November 30, 2023) · PRC Ministry of Commerce · 2023-11-30
8. **S8** confirmed 2024-08-15 — MOFCOM and GAC announced export controls on antimony and superhard-material items effective 2024-09-15.
Ministry of Commerce Regular Press Conference (August 22, 2024) · PRC Ministry of Commerce · 2024-08-22
9. **S9** confirmed 2024-12-02 — BIS issued rules adding controls on 24 types of semiconductor manufacturing equipment and 3 software tools, a new control on high-bandwidth memory (ECCN 3A090.c), new FDPR provisions, and 140 Entity List additions targeting China's chip supply chain.
Commerce Strengthens Export Controls to Restrict China's Capability to Produce Advanced Semiconductors for Military Applications · BIS · 2024-12-02
10. **S10** confirmed 2024-12-03 — MOFCOM issued Announcement No. 46 of 2024 prohibiting in principle exports of gallium, germanium, antimony and superhard materials to the United States and banning dual-use exports to U.S. military end users, effective immediately.
Ministry of Commerce holds Regular Press Conference (December 5, 2024) · PRC Ministry of Commerce · 2024-12-05
11. **S11** confirmed 2024-12-09 — SAMR announced an antimonopoly investigation into Nvidia for suspected violation of the Anti-Monopoly Law and of conditions attached to its 2020 Mellanox acquisition approval.
· SAMR · 2024-12-09

12. **S12** confirmed 2025-01-13 — BIS issued the 'Framework for Artificial Intelligence Diffusion' interim final rule imposing worldwide, tiered license requirements on advanced computing ICs and a first-ever control on closed AI model weights (ECCN 4E091), with compliance required from 2025-05-15.
Framework for Artificial Intelligence Diffusion · Federal Register (BIS) · 2025-01-15
13. **S13** confirmed 2025-04-04 — MOFCOM/GAC Announcement No. 18 of 2025 imposed export controls on seven medium and heavy rare earth elements (samarium, gadolinium, terbium, dysprosium, lutetium, scandium, yttrium) and related items.
Announcement No.18 of 2025 of MOFCOM and GAC on export control on some medium and heavy rare earth related items · PRC Ministry of Commerce · 2025-04-04
14. **S14** confirmed 2025-04-09 — The U.S. government informed Nvidia that a license is required to export H20 chips (and any chip matching H20 memory/interconnect bandwidth) to China and D:5 countries, and on 2025-04-14 said the requirement would last indefinitely.
NVIDIA Form 8-K, Item 8.01 (event date April 9, 2025) · SEC EDGAR / NVIDIA · 2025-04-15
15. **S15** confirmed 2025-05-13 — BIS announced rescission of the AI Diffusion Rule (instructing staff not to enforce it) and issued guidance that using Huawei Ascend 910B/910C/910D chips anywhere risks violating U.S. export controls.
Department of Commerce Announces Rescission of Biden-Era Artificial Intelligence Diffusion Rule, Strengthens Chip-Related Export Controls · BIS · 2025-05-13
16. **S16** confirmed 2025-07-14 — Nvidia announced it was filing applications to sell H20 again and that the U.S. government had assured it licenses would be granted, and unveiled a China-compliant RTX PRO GPU.
NVIDIA CEO Promotes AI in DC and China (blog) · NVIDIA · 2025-07-14
17. **S17** confirmed 2025-07-31 — The CAC summoned Nvidia to explain alleged 'backdoor' security risks in H20 chips sold to China and to submit supporting materials.
H20 · Cyberspace Administration of China · 2025-07-31
18. **S18** confirmed 2025-08-27 — In its 10-Q for the quarter ended July 27, 2025 (filed 2025-08-27), Nvidia disclosed that U.S. officials expected the government to receive 15% of revenue from licensed H20 sales to China but that no regulation codifying the requirement had been published; licenses were granted in August 2025 with no H20 shipments or revenue under them to date.
NVIDIA Form 10-Q for quarter ended July 27, 2025 · SEC EDGAR / NVIDIA · 2025-08-27
19. **S19** reported 2025-08-12 — Bloomberg reported that Beijing issued guidance urging Chinese companies to avoid using Nvidia H20 chips, particularly for government-related purposes.
China Urges Firms to Avoid Nvidia H20 Chips After Trump Resumes Sales · Bloomberg · 2025-08-12
20. **S20** confirmed 2025-08-29 — BIS revoked Validated End User status for foreign-owned fabs in China (Samsung, SK hynix, Intel Dalian), requiring licenses within 120 days and stating it will not license capacity expansion or technology upgrades.
Department of Commerce Closes Export Controls Loophole for Foreign-Owned Semiconductor Fabs in China · BIS · 2025-08-29
21. **S21** confirmed 2025-09-15 — SAMR announced that its preliminary investigation found Nvidia violated the Anti-Monopoly Law and the Mellanox merger conditions, and decided to conduct a further investigation.
· SAMR · 2025-09-15
22. **S22** confirmed 2025-09-29 — BIS issued the 'Affiliates Rule' extending Entity List and MEU restrictions to any entity 50% or more owned by listed parties.
Department of Commerce Expands Entity List to Cover Affiliates of Listed Entities · BIS · 2025-09-29

23. **S23** confirmed 2025-10-09 — On 2025-10-09 MOFCOM issued Announcement No. 61 of 2025 (overseas rare-earth items) requiring Chinese dual-use export licenses for foreign-made listed items containing 0.1% or more (by value) Chinese-origin listed rare-earth items and for listed items produced abroad with Chinese-origin rare-earth mining/separation/metal-smelting/magnet/recycling technology (these provisions effective 2025-12-01), with case-by-case review for end uses in R&D/production of 14nm-and-below logic chips, 256-layer-and-above memory chips, related semiconductor equipment/materials, and potentially military AI; Announcement No. 62 (same day) imposed controls on rare-earth technologies.
MOFCOM Spokesperson's Remarks on China's Recent Economic and Trade Policies and Measures · PRC Ministry of Commerce · 2025-10-12
24. **S24** confirmed 2025-11-01 — Under the Trump-Xi Busan deal, the U.S. agreed to suspend the Affiliates Rule for one year from 2025-11-10 and China agreed to suspend its October 9 rare-earth controls and issue general licenses for rare earths, gallium, germanium, antimony and graphite for U.S. end users.
Fact Sheet: President Donald J. Trump Strikes Deal on Economic and Trade Relations with China · The White House · 2025-11-01
25. **S25** confirmed 2026-01-13 — On 2026-01-13 BIS issued a final rule (published in the Federal Register 2026-01-15, FR Doc. 2026-00789, effective 2026-01-15) changing the license review policy for exports from the United States of advanced computing commodities with TPP below 21,000 and total DRAM bandwidth below 6,500 GB/s (e.g., Nvidia H200, AMD MI325X) to end users in China or Macau from presumption of denial to case-by-case, conditioned on certifications of sufficient U.S. supply/no foundry diversion, a 50% cap relative to U.S. shipments, purchaser KYC/security procedures, and third-party testing in the U.S.; reexports and exports to D:5/Macau-headquartered entities elsewhere remain under presumption of denial.
Department of Commerce Revises License Review Policy for Semiconductors Exported to China · BIS · 2026-01-13
26. **S26** confirmed 2026-01-14 — On 2026-01-14 President Trump issued a Section 232 proclamation imposing a 25% ad valorem tariff, effective 12:01 a.m. EST 2026-01-15, on 'a very narrow category of semiconductors' (advanced computing chips and derivatives listed in an Annex), with exemptions for imports for use in U.S. data centers, repairs, R&D, startups, non-data-center consumer, civil industrial and public-sector uses.
Adjusting Imports of Semiconductors, Semiconductor Manufacturing Equipment, and Their Derivative Products into the United States · The White House · 2026-01-14
27. **S27** confirmed 2026-02 — Nvidia's 10-Q for the quarter ended 2026-04-26 states that beginning in February 2026 the U.S. government granted licenses allowing it to ship small amounts of H200 products to specific China-based customers, that 'to date' (as of filing) it had not generated any revenue under the H200 licensing program, and that it did not yet know whether any imports would be allowed into China.
NVIDIA Form 10-Q for quarter ended April 26, 2026 · SEC EDGAR / NVIDIA · 2026-05-20
28. **S28** confirmed 2026-05-17 — The White House fact sheet of 2026-05-17 on the Trump-Xi summit deals contains no provisions on semiconductors, chips, export controls or the Entity List; on export-control-adjacent matters it commits China only to address U.S. concerns about supply-chain shortages of rare earths and other critical minerals (yttrium, scandium, neodymium, indium) and to remove restrictions on rare-earth production/processing equipment and technologies (alongside unrelated commitments on agriculture, Boeing aircraft, Boards of Trade/Investment, Iran and North Korea).
Fact Sheet: President Donald J. Trump Secures Historic Deals with China, Delivering for American Workers, Farmers, and Industry · The White House · 2026-05-17
29. **S29** confirmed 2026-05-31 — BIS issued guidance clarifying that a license is still required to export advanced computing items (3A090/4A090 and .z items) to any entity headquartered in, or with an ultimate parent in, China/D:5 or Macau, even when the entity is located outside those destinations.

30. **S30** confirmed 2026-06-22 — MOFCOM added 10 U.S. military-related entities, including Aveox, Inc., to its Export Control Restricted Namelist, barring supply of dual-use items to them, in response to the U.S. expanding its list of 'Chinese military companies'.
MOFCOM Spokesperson's Remarks on Adding 10 U.S. Entities to the Export Control Restricted Namelist · PRC Ministry of Commerce · 2026-06-22
31. **S31** reported 2026-07-14 — Testifying before the House Foreign Affairs Committee, BIS Under Secretary Kessler said H200 shipments to China had begun but that 'very few shipments against licenses for H200s and equivalents have taken place' — a 'trivial' quantity; press coverage put the approved H200 licenses at roughly \$10 billion. Lawmakers (Ranking Member Meeks and Chairman Mast) criticized Commerce for adding no Chinese companies to the Entity List since October 2025.
FY27 BIS Budget: the AI Arms Race and the ICTS Office (hearing page) · House Foreign Affairs Committee · 2026-07-14
32. **S32** confirmed 2022-12-15 — BIS announced the addition of 36 entities (35 in China, 1 in Japan), including Yangtze Memory Technologies Co. (YMTC), to the Entity List, effective 2022-12-16.
Commerce Adds 36 to Entity List for Supporting the People's Republic of China's Military Modernization, Violations of Human Rights, and Risk of Diversion · Bureau of Industry and Security (bis.gov) · 2022-12-15
33. **S33** confirmed 2022-12-16 — Federal Register final rule 'Additions and Revisions to the Entity List and Conforming Removal From the Unverified List' (87 FR 77505-77518, published 2022-12-19, effective 2022-12-16) lists Yangtze Memory Technologies Co., Ltd. among 36 entities added and removes YMTC from the Unverified List.
Additions and Revisions to the Entity List and Conforming Removal From the Unverified List · govinfo.gov (Federal Register Vol. 87 No. 242) · 2022-12-19
34. **S34** confirmed 2023-08-09 — Executive Order 14105 'Addressing United States Investments in Certain National Security Technologies and Products in Countries of Concern' was signed 2023-08-09, directing Treasury to set up an outbound-investment program covering semiconductors/microelectronics, quantum information technologies, and AI, with China (incl. Hong Kong and Macau) named as country of concern.
Executive Order 14105 of August 9, 2023: Addressing United States Investments in Certain National Security Technologies and Products in Countries of Concern · govinfo.gov (Federal Register Vol. 88 No. 154) · 2023-08-11
35. **S35** confirmed 2024-10-28 — Treasury issued the final rule implementing EO 14105 ('Provisions Pertaining to U.S. Investments in Certain National Security Technologies and Products in Countries of Concern', 31 CFR Part 850, RIN 1505-AC82); it was published 2024-11-15 at 89 FR 90398-90473 and became effective 2025-01-02.
Provisions Pertaining to U.S. Investments in Certain National Security Technologies and Products in Countries of Concern; Final Rule · govinfo.gov (Federal Register Vol. 89 No. 221) · 2024-11-15
36. **S36** reported 2023-09-05 — TechInsights' teardown of the Huawei Mate 60 Pro found HiSilicon's Kirin 9000s SoC fabricated on SMIC's 7nm (N+2) process without EUV lithography; die size 107 mm² (2% larger than the Kirin 9000's 105 mm²).
TechInsights Finds SMIC 7nm (N+2) in Huawei Mate 60 Pro · TechInsights · 2023-09-04
37. **S37** confirmed 2024-05-07 — Intel's Form 8-K (filed 2024-05-08) states that on 2024-05-07 the U.S. Department of Commerce informed Intel it was 'revoking certain licenses for exports of consumer-related items to a customer in China, effective immediately'.
Intel Corporation Form 8-K (intc-20240508) · Intel Corporation (SEC Form 8-K) · 2024-05-08
38. **S38** reported 2024-05-07 — The U.S. revoked export licenses allowing Intel and Qualcomm to ship chips for laptops and handsets to Huawei; Commerce confirmed revoking some licenses without naming the companies (Reuters via

Yahoo Finance).

US revokes Intel, Qualcomm's export licenses to sell to China's Huawei, sources say · Reuters (via Yahoo Finance) · 2024-05-07

39. **S39** confirmed 2024-09-06 — BIS interim final rule 'Commerce Control List Additions and Revisions; Implementation of Controls on Advanced Technologies Consistent With Controls Implemented by International Partners' (89 FR 72926-72956, doc 2024-19633) took effect 2024-09-06, adding controls on quantum computing items, GAAFET technology, advanced-node semiconductor manufacturing items (etch, EUV masks) and metal additive-manufacturing equipment, and creating License Exception IEC.
Commerce Control List Additions and Revisions; Implementation of Controls on Advanced Technologies Consistent With Controls Implemented by International Partners · govinfo.gov (Federal Register Vol. 89 No. 173) · 2024-09-06
40. **S40** confirmed 2024-09-06 — The Netherlands expanded its national export-control measure for advanced semiconductor manufacturing equipment (DUV lithography), with the national authorization requirement applying to more types of equipment from 2024-09-07 for exports outside the EU.
The Netherlands expands export control measure for advanced semiconductor manufacturing equipment · Government of the Netherlands (government.nl) · 2024-09-06
41. **S41** confirmed 2024-09-06 — ASML stated that under the Dutch government's updated licence requirement effective 2024-09-07 it will apply to the Dutch government (rather than the US government) for export licences for TWINSCAN NXT:1970i and NXT:1980i immersion DUV systems; NXT:2000i and later DUV immersion and EUV systems were already under Dutch licensing.
Statement regarding Dutch government's updated export license requirement · ASML (press release) · 2024-09-06
42. **S42** confirmed 2025-01-15 — The Netherlands announced that from 2025-04-01 specific measuring and inspection equipment usable in advanced semiconductor production will be added to the national export authorization requirement for exports outside the EU.
Klever: export controls on advanced semiconductor manufacturing equipment to be tightened · Government of the Netherlands (government.nl) · 2025-01-15
43. **S43** reported 2024-10-09 — TechInsights published a die analysis of Huawei's Ascend 910B AI trainer (2024-10-09) finding a 664.5 mm² die manufactured by TSMC on its N7HPC process.
Huawei Ascend 910B AI Trainer - Die Analysis · TechInsights · 2024-10-09
44. **S44** reported 2024-10-23 — TSMC stated it 'has not supplied to Huawei since mid-September 2020' and 'proactively communicated with the US Commerce Department regarding the matter' after TechInsights found a TSMC-made die in Huawei's Ascend 910B; TSMC said it was not aware of being under investigation.
TSMC notifies US about use of its chip by Huawei · Taipei Times (reporting Reuters; TSMC statement) · 2024-10-24
45. **S45** reported 2024-11-11 — Commerce sent TSMC an 'is informed' letter imposing licence requirements on 7nm-or-more-advanced chips destined for China that power AI accelerators and GPUs; TSMC told affected clients it was suspending such shipments from Monday 2024-11-11.
US orders TSMC to stop sending advanced AI chips to China · Yahoo Finance (SCMP/Reuters) · 2024-11-10
46. **S46** confirmed 2025-01-15 — BIS announced two rules on 2025-01-15: an interim final rule strengthening controls on advanced computing ICs with new foundry/OSAT due-diligence requirements, and a rule adding 16 entities to the Entity List including Sophgo Technologies Ltd.
Commerce Strengthens Restrictions on Advanced Computing Semiconductors to Enhance Foundry Due Diligence and Prevent Diversion to PRC · Bureau of Industry and Security (bis.gov) · 2025-01-15
47. **S47** confirmed 2025-01-16 — The BIS 'foundry due diligence' interim final rule (RIN 0694-AJ98, Docket 250108-0013) was published in the Federal Register on 2025-01-16, effective 2025-01-16 with a 2025-01-31 compliance date,

creating approved IC designer and approved OSAT lists and a presumption that advanced logic ICs at/under 16/14nm are 3A090.a items unless attested otherwise.

Implementation of Additional Due Diligence Measures for Advanced Computing Integrated Circuits; Amendments and Clarifications; and Extension of Comment Period (FR Doc. 2025-00711) · Federal Register via GovInfo · 2025-01-16

48. **S48** confirmed 2025-01-16 — BIS final rule 'Additions to the Entity List' (Docket 250106-0001) added 16 entities (14 China, 2 Singapore) effective 2025-01-16, including Sophgo Technologies Ltd., Qingdao Sophgo, Wuhan/Wuxi Suanneng (a.k.a. Sophgo), Xiamen Sophgo and Sophgo Technologies Pte. Ltd. (Singapore).
Additions to the Entity List (FR Doc. 2025-00480) · Federal Register via GovInfo · 2025-01-16
49. **S49** confirmed 2025-01-16 — A separate BIS final rule (Docket 250108-0010) added 11 China entities effective 2025-01-16, ten of them Zhipu affiliates (e.g., Beijing Zhipu Huazhang Technology Co., Ltd.), for advancing PRC military modernization through advanced AI research; it also revised the India 'Department of Atomic Energy entities' entry.
Addition of Entities to and Revision of Entry on the Entity List (FR Doc. 2025-00704) · Federal Register via GovInfo · 2025-01-16
50. **S50** confirmed 2025-01-20 — DeepSeek released DeepSeek-R1 on 2025-01-20, claiming performance on par with OpenAI-o1, MIT-licensed weights, six distilled models, and API pricing of \$0.14/\$0.55 per M input tokens (cache hit/miss) and \$2.19 per M output tokens.
DeepSeek-R1 Release · DeepSeek API Docs (api-docs.deepseek.com) · 2025-01-20
51. **S51** reported 2025-01-31 — Bloomberg reported on 2025-01-31 that US officials (Commerce/White House/FBI) were probing whether DeepSeek obtained restricted Nvidia chips through intermediaries in Singapore, part of the chip-diversion debate triggered by R1.
US Probing If DeepSeek Got Nvidia Chips From Firms in Singapore · Bloomberg · 2025-01-31
52. **S52** confirmed 2025-02-27 — Singapore charged three men (Wei Zhaolun Alan, Woon Guo Jie Aaron, Li Ming) on 2025-02-27 with fraud by false representation (s.424B Penal Code, conspiracy under s.120B for Wei/Woon) over servers supplied by Dell and Supermicro that were shipped from Singapore to Malaysia; Minister K Shanmugam said on 2025-03-03 the servers 'may contain Nvidia chips'.
Transcript of Media Conference With Mr K Shanmugam, Minister for Home Affairs and Minister for Law, Regarding the Case Involving the Three Men Who Were Charged on 27 February 2025 for Fraud by False Representation · Singapore Ministry of Home Affairs (mha.gov.sg) · 2025-03-03
53. **S53** confirmed 2025-08-05 — DOJ (C.D. Cal.) announced the arrest of Chuan Geng and Shiwei Yang of ALX Solutions Inc. on a federal complaint alleging they exported tens of millions of dollars of AI GPUs (incl. Nvidia H100 and RTX 4090) to China without licenses via freight forwarders in Singapore and Malaysia, October 2022-July 2025.
Two Chinese Nationals Arrested on Federal Complaint Alleging They Illegally Shipped to China Sensitive Microchips Used in AI Applications · US Department of Justice (justice.gov) · 2025-08-05
54. **S54** confirmed 2025-12-08 — DOJ (S.D. Tex./OPA) announced 'Operation Gatekeeper' on 2025-12-08: Alan Hao Hsu (Missouri City, TX) and Hao Global LLC pleaded guilty on 2025-10-10 to smuggling/unlawful export of at least \$160 million of export-controlled Nvidia H100 and H200 GPUs (Oct 2024-May 2025); Fanyue Gong and Benlin Yuan charged; authorities seized more than \$50 million in GPUs and cash, and the scheme received >\$50 million in PRC-origin wire transfers.
U.S. Authorities Shut Down Major China-Linked AI Tech Smuggling Network · US Department of Justice (justice.gov) · 2025-12-09
55. **S55** confirmed 2025-03-25 — BIS announced on 2025-03-25 the addition of 80 entities to the Entity List (China, UAE, South Africa, Iran, Taiwan and others), including 12 for AI/supercomputing, 27 for hypersonic weapons and 7 for quantum, plus Huawei/HiSilicon-linked and TFASA-linked entities.

56. **S56** confirmed 2025-03-25 — Federal Register rule 'Additions to the Entity List' (Docket 250324-0047; published 2025-03-28, effective 2025-03-25) added 12 entities (11 China, 1 Taiwan) including six Inspur Group subsidiaries (e.g., Inspur Electronic Information Industry Co., Ltd., Inspur Taiwan) and Nettrix Information Industry Co., Ltd. Additions to the Entity List (FR Doc. 2025-05427) · Federal Register via GovInfo · 2025-03-28
57. **S57** confirmed 2025-09-12 — BIS rule 'Additions and Revisions to the Entity List' (Docket 250912-0152; effective 2025-09-12, published 2025-09-16) added 32 entities (23 China, 3 Turkey, 2 UAE, 1 each India/Iran/Singapore/Taiwan), including GMC Semiconductor Technology (Wuxi) Co., Ltd. and Jicun Semiconductor Technology (Shanghai) Co., Ltd. for acquiring US-origin semiconductor manufacturing equipment for SMIC Northern and SMIC Beijing without a license. Additions and Revisions to the Entity List (FR Doc. 2025-17893) · Federal Register via GovInfo · 2025-09-16
58. **S58** confirmed 2026-01-21 — The House Foreign Affairs Committee advanced the AI OVERWATCH Act (H.R. 6875, introduced by Chairman Brian Mast on 2025-12-18) at a full-committee markup on 2026-01-21 by a 42-2 vote with one member voting present. Chairman Mast, HFAC, advances AI Overwatch Act · House Foreign Affairs Committee (foreignaffairs.house.gov) · 2026-01-21
59. **S59** confirmed 2026-02-12 — BIS announced on 2026-02-12 that Applied Materials, Inc. and Applied Materials Korea agreed to pay approximately \$252 million (the maximum, twice the ~\$126 million transaction value) for ion implanters shipped in 2021-2022 via Korea to a China company placed on the Entity List in 2020 (widely reported to be SMIC, though BIS did not name it), the second-highest BIS penalty ever. Applied Materials to Pay \$252 Million Penalty to BIS for Illegally Exporting Semiconductor Manufacturing Equipment · Bureau of Industry and Security (bis.gov) · 2026-02-12
60. **S60** confirmed 2026-02-11 — Applied Materials disclosed (press release furnished as Exhibit 99.1 to a Form 8-K) that it reached a settlement with BIS agreeing to pay \$252.5 million to resolve allegations that certain customer shipments to China between November 2020 and July 2022 did not comply with the EAR, and that DOJ and SEC closed related investigations without action. Applied Materials Reaches Resolution with the U.S. Department of Commerce (Form 8-K Exhibit 99.1) · US SEC EDGAR (Applied Materials Form 8-K, Ex. 99.1) · 2026-02-11
61. **S61** confirmed 2026-04-09 — BIS final rule (Docket 260406-0093; published 2026-04-09, effective 2026-04-07) extended the 'authorized IC designer' status and the deadline to apply to become an approved IC designer under Note 1 to ECCN 3A090.a from 2026-04-13 to 2026-12-31 (about eight months). Extension of Authorized Integrated Circuit (IC) Designer Status and Application Deadline To Become an Approved IC Designer (FR Doc. 2026-06851) · Federal Register via GovInfo · 2026-04-09
62. **S62** reported 2026-05-29 — Japan's METI reportedly revised the export-control list under the Foreign Exchange and Foreign Trade Act on 2026-05-29 to add advanced-packaging semiconductor equipment (a 'third round' of chip-equipment controls), effective 2026-08-01. *analyst judgment — no external source* · discoveryalert.com.au (secondary, low authority) · 2026-06-01

Actor positions

1. **S101** confirmed 2026-01-13 — On 2026-01-13 BIS announced (press release; final rule published in the Federal Register as 2026-00789, effective 2026-01-15) that it will review license applications for exports from the U.S. of the Nvidia H200, AMD MI325X and similar chips to China (the rule text also covers Macau) on a case-by-case basis instead of under a presumption of denial, provided that (1) exporting these products will not reduce global

semiconductor production capacity currently available to U.S. customers, (2) the Chinese purchaser has adopted export compliance procedures, including customer screening, and (3) the product has undergone independent, third-party testing in the United States to verify its performance and security.

Department of Commerce Revises License Review Policy for Semiconductors Exported to China · Bureau of Industry and Security, U.S. Department of Commerce · 2026-01-13

2. **S102** reported 2026-05-31 — On 2026-05-31 (a Sunday) BIS issued 'Guidance Regarding Enforcement of License Requirements for Advanced Computing Items for Entities Headquartered in Country Group D:5 and Macau', clarifying that a license is required to export advanced computing items to entities headquartered in Country Group D:5 (which includes China) or Macau, or whose ultimate parent company is headquartered there, even if the entities themselves are located outside those destinations; bona fide data-center operators are not required to cease ongoing use, storage, disposal or servicing of such items.
US says ban on AI chip shipments applies to Chinese firms outside China · Al Jazeera · 2026-06-01
3. **S103** reported 2026-04-22 — Lutnick testified to the Senate CJS appropriations subcommittee on Wed. 2026-04-22 (where he said none of Nvidia's H200 chips had yet been sold to China) and to the House CJS appropriations subcommittee on Thu. 2026-04-23 (where he said 'BIS is the frontline and our key defense from China trying to get our best chips and our best technology'); the FY2027 BIS budget request carries a nearly \$152 million price tag to hire 290 export enforcement agents and 23 support specialists.
Lutnick urges boost for trade enforcement at BIS · Roll Call · 2026-04-24
4. **S104** reported 2026-05-14 — By 2026-05-14 Commerce had cleared roughly ten Chinese companies to buy Nvidia H200 chips (up to 75,000 each), reportedly including Alibaba, Tencent, ByteDance and JD.com as buyers plus distributors such as Lenovo and Foxconn, but no chips had shipped.
U.S. clears H200 chip sales to 10 China firms as Nvidia CEO looks for breakthrough · CNBC · 2026-05-14
5. **S105** reported 2025-12-08 — On 2025-12-08 (4:29 PM EST) Trump posted on Truth Social that he had informed Xi the U.S. will allow Nvidia to ship its H200 products to 'approved customers' in China 'and other Countries', with 25% paid to the United States, that Xi 'responded positively', and that the policy 'will support American Jobs, strengthen U.S. Manufacturing, and benefit American Taxpayers'.
Trump greenlights Nvidia H200 AI chip sales to China if U.S. gets 25% cut, says Xi responded positively · CNBC · 2025-12-08
6. **S106** reported 2026-05-15 — On 2026-05-15, speaking to reporters aboard Air Force One after the two-day Beijing summit, Trump said of H200 purchases: 'They choose not to buy because they want to develop their own. I think something could happen on that,' and indicated Xi told him he wants to make his own chips.
Trump says China is blocking Nvidia H200 purchases despite US approval · Tom's Hardware · 2026-05-15
7. **S107** reported 2026-01-21 — In January 2026 White House AI and crypto adviser David Sacks opposed the AI OVERWATCH Act, posting on X that it 'would restrict the President's ability to restrict AI chip export controls' and 'handicaps Trump's ability to strategically position the USA favorably against China'; the House Foreign Affairs Committee nonetheless advanced the bill 42-2 (one present) on 2026-01-21.
Chip export bill advances in House Foreign Affairs · Roll Call · 2026-01-21
8. **S108** confirmed 2026-01-21 — On 2026-01-21 the House Foreign Affairs Committee advanced the AI OVERWATCH Act (H.R. 6875), which would subject exports of the most advanced AI chips to congressional review; Mast said the bill "keeps America's advanced AI chips out of the hands of Chinese commie spies."
Chairman Mast, HFAC, advances AI Overwatch Act · House Foreign Affairs Committee · 2026-01-21
9. **S109** confirmed 2025-12-12 — In a 2025-12-12 letter to Secretary Lutnick, Moolenaar said he had "serious concerns that granting China access to potentially millions of chips that are generations beyond its domestic capabilities" would undermine U.S. AI dominance, and requested a briefing on the H200 decision by 2026-01-15.
Select Committee H200 letter to Lutnick, December 2025 · House Select Committee on the CCP · 2025-12-12

10. **S110** confirmed 2026-08-10 — On 2026-08-10 the Select Committee announced Moolenaar's letter urging BIS Under Secretary Kessler to clarify that the Foundry Due Diligence Rule remains in effect, citing that TSMC exports "enabled Huawei to obtain millions of controlled Ascend logic dies" via front company Sophgo in 2023-2024.
Moolenaar: AI Chipmaker End-User Restrictions Undermined by Loopholes · House Select Committee on the CCP · 2026-08-10
11. **S111** confirmed 2026-04-21 — On 2026-04-21 Moolenaar urged Secretary of State Rubio to press the Netherlands so that ASML's NXT:1965i immersion DUV tool "is treated no more permissively than ASML's more capable NXT:1980i at any Chinese fab," citing reports ASML plans to ship certain advanced lithography systems to China by end-2026.
Moolenaar Urges U.S. Engagement with the Netherlands to Close Export Control Loopholes · House Select Committee on the CCP · 2026-04-21
12. **S112** confirmed 2026-01-12 — In a 2026-01-12 letter to Lutnick, Meeks and Amo expressed "alarm and opposition" to approving H200 sales to China and argued the 25% revenue collection "is likely illegal" because ECRA prohibits the federal government from charging fees in connection with the approval of export licenses (the letter cites ECRA generally; it does not cite 50 U.S.C. §4815(c) by section number).
Congressional letter on Nvidia AI chips · U.S. House of Representatives (Rep. Gabe Amo) · 2026-01-12
13. **S113** confirmed 2025-12-12 — On 2025-12-12 Warren led a letter to Lutnick, joined by six other Democratic senators (Schumer, Wyden, Kim, Bennet, Kaine, Slotkin), opposing H200 sales to China; the letter requested answers by 2025-12-19. The quotes 'risks turbocharging China's bid...' and 'After his backroom meeting with Donald Trump and his company's donation to the Trump ballroom, CEO Jensen Huang got his wish...' come from Warren's separate statement of 2025-12-08 on the administration's H200 decision, not from the 12-12 letter release.
Warren, Schumer, Colleagues Press Lutnick on Administration's Decision to Sell Out US National and Economic Security by Greenlighting the Sale of H200 Chips to China · U.S. Senate Committee on Banking, Housing, and Urban Affairs (Minority) · 2025-12-12
14. **S114** reported 2026-04-30 — Sen. Banks introduced the Senate AI OVERWATCH Act (S.4456) on 2026-04-30 (referred to Senate Banking), and in mid-July 2026 the AI OVERWATCH Act, Chip Security Act and MATCH Act were reported to be included in the Senate NDAA manager's amendment.
House panel advances AI chip export control bill · The Hill · 2026-01
15. **S115** confirmed 2026-01-25 — Nvidia's FY2026 10-K reports revenue from customers headquartered in China (including Hong Kong) of \$19,677 million out of \$215,938 million total (about 9.1%), down from \$25,048 million of \$130,497 million (about 19.2%) in FY2025.
NVIDIA Form 10-K for fiscal year ended January 25, 2026 · U.S. SEC / Nvidia · 2026-02
16. **S116** confirmed 2026-01-25 — Nvidia's FY2026 10-K states it took a \$4.5 billion charge in Q1 FY2026 for H20 excess inventory and purchase obligations, generated only about \$60 million of H20 revenue under August 2025 licenses, and that "USG officials expressed an expectation that the USG will receive 15% or more of the revenue generated from licensed sales of our products, but the USG did not publish a regulation codifying such requirement."
NVIDIA Form 10-K for fiscal year ended January 25, 2026 · U.S. SEC / Nvidia · 2026-02
17. **S117** confirmed 2026-04-26 — Nvidia's 10-Q for the quarter ended 2026-04-26 reports China (incl. Hong Kong) revenue of \$4,550 million out of \$81,615 million (about 5.6%), versus \$9,659 million of \$44,062 million a year earlier, and repeats that no revenue has been generated under the H200 licensing program.
NVIDIA Form 10-Q for quarter ended April 26, 2026 · U.S. SEC / Nvidia · 2026-05
18. **S118** confirmed 2026-05-20 — In its Q1 FY2027 results on 2026-05-20 (revenue \$81.6 billion; Q2 outlook \$91.0 billion ±2%), Nvidia stated it "is not assuming any Data Center compute revenue from China in its outlook."
NVIDIA Announces Financial Results for First Quarter Fiscal 2027 · NVIDIA Newsroom · 2026-05-20

19. **S119** reported 2026-04 — Huang has repeatedly described China as a roughly \$50 billion AI-chip market opportunity (Aug 2025 earnings call, per Fortune) and argues U.S. firms should sell there so the world runs on the U.S. stack rather than Huawei's Ascend/CUDA-alternative ecosystem. The quotes 'China's AI moves on with or without U.S. chips' and 'The AI race is not just about chips. It's about which stack the world runs on' are attributed by the April 2026 24/7 Wall St. article to Huang's earlier Dwarakesh Podcast appearance / Q1 FY2026 (May 2025) earnings call, not to new April 2026 remarks.
Nvidia: Jensen Huang Says We Should Be Selling Chips to China · 24/7 Wall St. · 2026-04-17
20. **S120** confirmed 2026-06-27 — AMD's 10-Q for the quarter ended 2026-06-27 states the April 2025 license requirement on MI308 caused approximately \$440 million of net inventory and related charges in 2025, that in February 2026 the U.S. granted licenses to ship MI325 to certain China-based customers subject to U.S. inspection and a 25% tariff, and that AMD does "not yet know whether any imports of MI325 products will be allowed into China."
AMD Form 10-Q for quarter ended June 27, 2026 · U.S. SEC / AMD · 2026-08
21. **S121** reported 2026-02-03 — On AMD's 2026-02-03 Q4 2025 earnings call Lisa Su said AMD had some MI308 sales to China in Q4 2025 (from orders placed in early 2025 under an approved license), was forecasting about \$100 million of MI308 China revenue in Q1 2026, had submitted license applications for the MI325, and was not forecasting any additional China revenue because the situation is 'very dynamic.'
AMD CEO Lisa Su Says Company Is Not Forecasting Any China AI Chip Revenue Beyond \$100 Million In Q1 Amid Licensing Uncertainty · Benzinga · 2026-02
22. **S122** reported 2026-07-16 — On its 2026-07-16 Q2 2026 earnings call TSMC management (C.C. Wei, Wendell Huang) made no statements about China or export controls, while announcing an additional \$100 billion Arizona investment (total committed about \$265 billion) and raising 2026 capex to \$60-64 billion.
TSM Q2 2026 Earnings Call Transcript · The Motley Fool (transcript) · 2026-07-16
23. **S123** confirmed 2026-07-15 — On the 2026-07-15 Q2 2026 call CFO Roger Dassen said "We still look at China as approximately 20% of our total net sales, so that percentage hasn't changed," while reporting Q2 net sales of €9.3 billion and 2026 guidance of €43-45 billion.
ASML Holding Q2 2026 Earnings Call Transcript · StockAnalysis (ASML Q2 2026 call transcript) · 2026-07-15
24. **S124** reported 2026-05-21 (article date; exact interview date not stated) — In remarks to Reuters at a technology event in Antwerp (reported 2026-05-21), Fouquet warned tighter chip-tool export curbs would speed China's own tool development: 'If I put you in a desert and tell you you're not going to have access to food anymore - how long does it take you to make your own garden?'
ASML CEO says tighter curbs to push China toward creating competing tools · Global Times · 2026-05-21
25. **S125** reported 2026-06-24 — On 2026-06-24, after meeting Secretary Lutnick and lawmakers in Washington about the proposed MATCH Act (which would bar immersion DUV exports to China and restrict servicing), Sjoerdsma said "If cooperation becomes cooperation by force, that's undesirable from our point of view."
Dutch minister pushes back on US bid to tighten China chip controls · Bits&Chips · 2026-06-24
26. **S126** confirmed 2026-06-04 — On 2026-06-04 MOFCOM spokesperson He Yongqian, asked about the U.S. Commerce Department's move to close chip-related 'regulatory loopholes,' said the U.S. 'has repeatedly abused export controls in the name of national security,' harming Chinese firms and 'the stability of global semiconductor industrial and supply chains,' that 'China has always opposed this,' and urged the U.S. to 'correct its wrong practices as soon as possible.'
China says US abuse of export controls disrupts global semiconductor industrial, supply chains · State Council Information Office (Xinhua) · 2026-06-05
27. **S127** reported 2026-06-22 — On 2026-06-22 MOFCOM (Announcement No. 23 of 2026) added ten U.S. entities to China's Export Control List, saying the move responded to the U.S. expansion of its "China military-industrial entity" list.

China adds 10 US entities to export control list following US expansion of 'China military-industrial entity' list · Global Times · 2026-06-22

28. **S128** confirmed 2025-12-09 — Asked on 2025-12-09 whether China would allow H200 purchases after Trump's decision, Guo Jiakun said: "We have noticed the reports. China always advocates that China and the United States achieve mutual benefit through cooperation."
Foreign Ministry Spokesperson Guo Jiakun's Regular Press Conference on December 9, 2025 · Ministry of Foreign Affairs of the PRC · 2025-12-09
29. **S129** confirmed 2026-01-15 — On 2026-01-15, asked about U.S. approval of H200 sales with a 25% U.S. take, Mao Ning said: "On U.S. chips export to China and the tariffs issue, China has made clear its position more than once."
Foreign Ministry Spokesperson Mao Ning's Regular Press Conference on January 15, 2026 · Ministry of Foreign Affairs of the PRC · 2026-01-15
30. **S130** reported 2026-01-14 — On 2026-01-14 Tom's Hardware, citing Reuters (three sources), reported Chinese customs had been told not to allow Nvidia H200 imports and that Beijing told firms to pause purchases; approvals for multiple Chinese customers were reported around 2026-03-18 (Huang confirmed orders); on 2026-05-15 Trump said after the Xi summit that China "chose not to" approve purchases and reports said no chips had shipped.
Chinese customs told to block H200 imports, report claims · Tom's Hardware · 2026-01
31. **S131** reported 2026-05-31 (article date; interview date not specified) — In an interview reported in late May 2026 (Tom's Hardware May 29-30, Tekedia May 31), Huawei rotating chairman Xu Zhijun said U.S. controls forced Huawei's chip push and added, "we are also grateful to the U.S. for enabling our country's semiconductor industry chain to truly grow."
Huawei Thanks U.S. for Chip Curbs, Says it Accelerated China's Semiconductor Rise · Tekedia · 2026-05-31
32. **S132** reported 2026-05-15 — On SMIC's Q1 2026 earnings call (reported 2026-05-15) co-CEO Zhao Haijun said AI-driven capacity reallocation at overseas foundries meant "we are seeing many overseas customers shift their orders to be manufactured in China"; SMIC's Q2 2026 revenue of \$3.006bn (reported 2026-08-14) was its first quarter above \$3bn.
China's SMIC says foreign clients shifting orders back to China · Reuters via Yahoo Finance · 2026-05-14
33. **S133** reported 2026-04 (BigGo report dated 2026-05-01) — Cambricon's Q1 2026 revenue was 2.89 billion yuan (about \$423 million), up ~160% year-on-year from 1.11 billion yuan, with net profit up ~185% to about 1 billion yuan (from 356 million yuan).
China's Cambricon Shares Surge 14% After Q1 Revenue More Than Doubles on AI Chip Boom · BigGo Finance · 2026-04
34. **S134** reported 2026-01-20 — At Davos on 2026-01-20 Amodei opposed H200 sales to China, saying "I think it's a big mistake to ship these chips" and "We are many years ahead of China in terms of our ability to make chips."
Anthropic CEO: Selling H200s to China is like giving nukes to North Korea · The Register · 2026-01-20
35. **S135** confirmed 2026-03-02 — On 2026-03-02 SIA CEO John Neuffer said SIA "cannot support blanket mandates for new, untested, and potentially infeasible on-chip mechanisms, such as what is being proposed in the Chip Security Act" (S. 1705/H.R. 3447).
SIA Statement on Chip Security Act · Semiconductor Industry Association · 2026-03-02

Trigger indicators

1. **S201** confirmed 2026-01-15 — the last BIS Federal Register rule on advanced-computing exports to China is 'Revision to License Review Policy for Advanced Computing Commodities' (RIN 0694-AK43, Docket No. 260112-0028, 91 FR 1684), published and effective 2026-01-15, moving H200/MI325X-class chips (TPP <21,000, DRAM bandwidth <6,500 GB/s) from presumption of denial to case-by-case review subject to supply, third-party-testing and KYC

certifications.

Revision to License Review Policy for Advanced Computing Commodities (RIN 0694-AK43) · Federal Register · 2026-01-15

2. **S202** reported 2026-08-12 — a law-firm mid-year review dated 2026-08-12 lists as pending H2-2026 BIS actions the formal rescission of the AI Diffusion Rule, implementation of the AI Action Plan's export-control elements, and reimposition of the Affiliates Rule on 2026-11-10 unless further delayed, and notes no Entity List additions or removals occurred in H1 2026.
BIS Export Controls 2025 Year-in-Review and 2026 Mid-Year Update · Miller & Chevalier · 2026-08-12
3. **S203** confirmed 2025-11-12 — BIS's final rule 'One Year Suspension of Expansion of End-User Controls for Affiliates of Certain Listed Entities' (RIN 0694-AK34, Docket No. 251106-0169, 90 FR 50857) suspended the 2025-09-30 Affiliates Rule effective 2025-11-10, with the suspension set to end 2026-11-09 'absent a future extension'.
One Year Suspension of Expansion of End-User Controls for Affiliates of Certain Listed Entities · Federal Register · 2025-11-12
4. **S204** reported 2026-07-14 — At the 2026-07-14 House Foreign Affairs Committee hearing ('FY27 BIS Budget: the AI Arms Race and the ICTS Office'), Under Secretary Jeffrey Kessler said 'the bottom line is very few shipments against licenses for H200s and equivalents have taken place. It's a very small quantity of chips'; Commerce had approved around 10 Chinese firms this year (SCMP), with earlier reporting putting each customer's cap at up to 75,000 H200s (TrendForce); Chairman Mast urged BIS to keep Blackwell chips out of China and to add Chinese firms to the Entity List, which lawmakers said has not happened since October 2025. The '~\$10 billion' license value figure could not be verified.
Daily: H200s finally make it to China · Chip Briefing (Substack) citing Reuters/CNBC · 2026-07-15
5. **S205** confirmed 2026-05-31 — BIS guidance dated 2026-05-31 states a license 'is required to export advanced computing items to entities headquartered in Country Group D:5 or Macau or with an ultimate parent company headquartered in Country Group D:5 or Macau – even if the entities themselves are located outside' those jurisdictions, and that this pre-dates the AI Diffusion Rule non-enforcement policy.
Guidance Regarding Enforcement of License Requirements for Advanced Computing Items for Entities Headquartered in Country Group D:5 and Macau · Bureau of Industry and Security · 2026-05-31
6. **S206** confirmed 2026-05-20 — Nvidia's Q1 FY2027 CFO commentary (quarter ended 2026-04-26, released 2026-05-20) states 'No shipments of Data Center Hopper products to China occurred during the quarter' and that Q2 FY27 revenue guidance of \$91.0 billion ±2% assumes no Data Center compute revenue from China.
CFO Commentary on First Quarter Fiscal 2027 Results · SEC EDGAR (Nvidia 8-K exhibit) · 2026-05-20
7. **S207** confirmed 2026-05-20 — Nvidia's 10-Q for the quarter ended 2026-04-26 states 'Beginning in February 2026, the USG granted licenses that would allow us to ship small amounts of H200 products to specific China-based customers. To date, we have not generated any revenue under the H200 licensing program, and do not yet know whether any imports will be allowed into China,' and that licenses require a U.S. inspection before shipment.
NVIDIA Form 10-Q for quarter ended April 26, 2026 · SEC EDGAR · 2026-05-20
8. **S208** confirmed 2026-08-04 — AMD's Q2 2026 results (2026-08-04; revenue \$11.5B, Data Center \$6.7B, Q3 guide ~\$13B ±\$300M) do not mention China at all; the only export-control reference is a footnote that Q2'25 results included \$800 million in inventory and related charges due to U.S. export controls on MI308 products, with no current MI308/MI325X China sales or guidance.
AMD Reports Second Quarter 2026 Financial Results · AMD Investor Relations · 2026-08-04
9. **S209** reported 2026-07-09 — reporting on 2026-07-09 (TrendForce citing Reuters/The Information) said Chinese authorities would allow H200 imports for Alibaba, ByteDance, DeepSeek and others but cap total approvals below 200,000 chips (less than half requested), reserve them for training, and require domestic chips (e.g., Huawei) for inference.

China Reportedly to Allow NVIDIA H200 Imports, but Approvals May Be Capped Below 200K Chips · TrendForce · 2026-07-09

10. **S210** reported 2025-11-09 — MOFCOM Announcement No. 70 of 2025 (2025-11-07) suspended October-9 Announcements 55, 56, 57, 58, 61 and 62 (rare-earth extraterritorial/0.1% rules, equipment, technologies) until 2026-11-10, and Announcement No. 72 (2025-11-09) suspended Article 2 of Announcement No. 46 of 2024 (gallium/germanium/antimony/superhard-material ban to the U.S.) until 2026-11-27, while Announcement 18 of 2025 (seven medium/heavy rare earths) remains in force.
China Suspends Export Controls on Certain Critical Minerals and Related Items · Pillsbury Winthrop Shaw Pittman · 2025-11-13
11. **S211** confirmed 2026-05-17 — the White House fact sheet of 2026-05-17 after the Beijing summit says 'China will address U.S. concerns regarding supply chain shortages related to rare earths and other critical minerals, including yttrium, scandium, neodymium, and indium' and restrictions on rare-earth processing equipment, and that Xi will visit Washington in the fall — but says nothing about semiconductors or export controls.
Fact Sheet: President Donald J. Trump Secures Historic Deals with China · The White House · 2026-05-17
12. **S212** confirmed 2026-06-22 — on 2026-06-22 MOFCOM announced it added 10 U.S. 'military-related entities, including Aveox, Inc.' to its Export Control Restricted Namelist 'in response to the U.S. government's egregious act of expanding its list of alleged Chinese military companies', prohibiting supply of dual-use items to them.
MOFCOM Spokesperson's Remarks on Adding 10 U.S. Entities to the Export Control Restricted Namelist · MOFCOM (English) · 2026-06-22
13. **S213** reported 2025-09-13 — MOFCOM opened on 2025-09-13 an anti-dumping investigation into U.S. 'commodity interface IC chip and gate driver IC chip' imports (analog ICs), on application of the Jiangsu Semiconductor Industry Association, normally to be completed by 2026-09-13 with a possible six-month extension.
China launches anti-dumping investigation into analog IC chips from US · Global Times · 2025-09-13
14. **S214** reported 2025-09-15 — on 2025-09-15 China's SAMR said its preliminary investigation found Nvidia violated the Anti-Monopoly Law in connection with the conditions attached to its Mellanox acquisition and that it would continue the investigation; no final decision or fine had been announced, and Nvidia's 10-Q filed 2026-05-20 still describes the matter as an open risk (regulators 'could' impose penalties or restrictions).
China: Nvidia violated anti-monopoly law, will continue investigation · CNBC · 2025-09-15
15. **S215** reported 2026-08-13 — SMIC's Q2 2026 results (released 2026-08-13; call 2026-08-14) show revenue \$3.006B (+36.1% y/y), gross margin 25.3%, utilization 93.7%, ~8,000 wafers/month of new 12-inch-equivalent capacity added, China customers 90.2% of revenue, and Q3 guidance of +2–4% q/q with 26–28% gross margin.
SMIC Q2 2026 Revenue Surpasses \$3 Billion as AI Demand Tightens Foundry Capacity · AnySilicon · 2026-08-15
16. **S216** reported 2025-09-18 — at Huawei Connect on 2025-09-18 Eric Xu set the Ascend roadmap at 950PR in Q1 2026, 950DT in Q4 2026, 960 in Q4 2027 and 970 in Q4 2028, with self-developed HBM.
Huawei Unveils Ascend 950 with In-House HBM in 2026, Touts SuperPoD to Rival NVIDIA · TrendForce · 2025-09-18
17. **S217** reported 2026-04-21 — in an 2026-04-20 letter to Secretary Rubio (released 2026-04-21), House China Select Committee Chairman Moolenaar said ASML plans to revive the discontinued NXT:1965i immersion DUV tool for China deliveries as early as Q4 2026, urged the Dutch government to treat it no more permissively than the NXT:1980i, and asked Commerce to consider the foreign direct product rule if the Dutch decline.
Lawmaker Aims to Close 'Loophole' in Export Controls for Chipmaking Tools · Export Compliance Daily · 2026-04-22
18. **S218** confirmed 2026-02-24 — MOFCOM said on 2026-02-24 it added 20 Japanese entities including Mitsubishi Heavy Industries Shipbuilding to the Export Control Restricted Namelist and 20 more (e.g., SUBARU) to a watch list

requiring individual licences for dual-use items, citing Japan's 'remilitarization'.

MOFCOM Spokesperson's Remarks on Export Control Measures Targeting Japan · MOFCOM (English) · 2026-02-24

19. **S219** reported 2026-07-22 — the House passed H.R. 8800 (FY2027 NDAA) 216–212 on 2026-07-22; the Senate Armed Services Committee voted 18–9 on 2026-06-10 and reported S. 4784 on 2026-06-15 (S. Rept. 119-127); a motion to proceed was made in the Senate on 2026-07-27, with floor action stalled as of late July 2026 by Democratic objections over the Iran war and spending.
House passes 2027 NDAA while measure remains stalled in the Senate · Breaking Defense · 2026-07
20. **S220** reported 2026-07-15 — As of 2026-07-14/15 the Senate NDAA manager's amendment was reported to include the AI OVERWATCH Act (H.R. 6875, ordered reported by HFAC 42–2 on 2026-01-21), the Chip Security Act (H.R. 3447/S. 1705, HFAC 42–0 on 2026-03-26; location-verification for exported AI chips) and the MATCH Act (S. 4281 introduced 2026-04-13 / H.R. 8170 introduced 2026-04-02 and ordered reported by HFAC 2026-04-22; DUV 'chokepoint' tool alignment with a 150-day allied deadline). Per Sen. Banks' office (WBIW, 2026-07-15) the Senate AI OVERWATCH text extends the prohibition on cutting-edge AI chip exports to countries of concern for 18 months and requires Commerce certification and individual licences; Punchbowl News (2026-07-16) reported HFAC ranking member Meeks is 'not okay' with the Senate AI OVERWATCH text.
Sen. Banks secures AI OVERWATCH Act in Senate NDAA · WBIW (Banks press release) · 2026-07-15
21. **S221** confirmed 2026-04-08 — The MATCH Act was announced by Sens. Risch, Ricketts and Kim (with Schumer as cosponsor) in an SFRC press release dated 2026-04-08; Congress.gov records S. 4281 as introduced 2026-04-13. It requires allied alignment on 'chokepoint' semiconductor-equipment controls with a 150-day deadline before unilateral controls, and the House companion is H.R. 8170 led by Rep. Baumgartner (introduced 2026-04-02, ordered reported by HFAC 2026-04-22).
Risch, Ricketts, Kim Introduce MATCH Act; Level the Global Playing Field for U.S. Tech · U.S. Senate Committee on Foreign Relations · 2026-04-08
22. **S222** reported 2026-07-23 — President Trump said on 2026-07-23 that 'President Xi is coming over on September 24th' for a Washington visit with AI expected to top the agenda, following his 2026-05-14/15 Beijing visit and the 2026-07-22 Rubio–Wang Yi meeting in Manila.
Trump confirms Xi visit to Washington as AI tops agenda · Brussels Signal · 2026-07
23. **S223** confirmed 2024-12-27 — China's WTO case DS615 (United States — Measures on Certain Semiconductor and Other Products, and Related Services and Technologies), filed 2022-12-12, remains in consultations; the latest recorded action is the U.S. acceptance on 2024-12-27 of China's 2024-12-19 supplementary consultation request while asserting the measures are national-security matters not reviewable by the WTO.
DS615: United States — Measures on Certain Semiconductor and Other Products, and Related Services and Technologies · World Trade Organization · 2024-12-27
24. **S224** confirmed 2026-04-09 — BIS's rule of 2026-04-09 (RIN 0694-AJ98, Docket No. 260406-0093, 91 FR 17851, effective 2026-04-07) extended by about eight months, to 2026-12-31, the triggering date for 'authorized IC designer' status and the deadline to apply to become an 'approved IC designer' under the January 2025 foundry/OSAT due-diligence controls.
Extension of Authorized Integrated Circuit (IC) Designer Status and Application Deadline To Become an Approved IC Designer · Federal Register · 2026-04-09

Baseline and scenarios

1. **S301** confirmed 2026-01-13 — On 2026-01-13 BIS announced (rule effective on Federal Register publication, 2026-01-15) that it will review export license applications for the Nvidia H200, AMD MI325X and similar chips to China case-by-case, provided (1) exports do not reduce global semiconductor capacity available to US customers, (2) the Chinese purchaser has export-compliance procedures incl. customer screening, and (3) the product has undergone

independent third-party testing in the US.

Department of Commerce Revises License Review Policy for Semiconductors Exported to China · U.S. Bureau of Industry and Security · 2026-01-13

2. **S302** reported 2026-01-15 — The January 2026 case-by-case policy covers chips with total processing performance under 21,000 and total DRAM bandwidth under 6,500 GB/s (roughly H200/MI325X level), and requires that aggregate shipments to China/Macau not exceed 50% of the quantity shipped to US customers; chips above these thresholds (e.g., Nvidia Blackwell) remain outside the relaxation.
BIS Revises Export Review Policy for Advanced AI Chips Destined for China and Macau · Morgan Lewis · 2026-01
3. **S303** confirmed 2026-01-14 — On 2026-01-14 President Trump signed a Section 232 proclamation imposing a 25% ad valorem tariff, effective 12:01 a.m. EST 2026-01-15, on certain advanced computing chips not intended for US use, with exemptions for US data centers, repairs, R&D, startups, non-data-center consumer/civil industrial and public-sector uses; the White House fact sheet names the Nvidia H200 and AMD MI325X. The proclamation itself does not mention China; the '25% cut' on China-bound H200s is the widely reported effect.
Adjusting Imports of Semiconductors, Semiconductor Manufacturing Equipment, and Their Derivative Products into the United States · The White House · 2026-01-14
4. **S304** reported 2025-12-08 — On 2025-12-08 President Trump announced the US would allow Nvidia to ship H200 products to 'approved customers' in China with 25% of the revenue going to the US government, explicitly excluding Blackwell and Rubin chips.
Trump greenlights Nvidia H200 AI chip sales to China if U.S. gets 25% cut, says Xi responded positively · CNBC · 2025-12-08
5. **S305** confirmed 2026-05-31 — On 2026-05-31 BIS issued guidance clarifying that a license requirement (first introduced Nov 17, 2023) continues to apply under § 742.6(a)(6)(iii)(A) for advanced computing items (e.g., ECCN 3A090.a/.b, 4A090.a/.b and related .z items) to entities headquartered in, or whose ultimate parent is headquartered in, Country Group D:5 or Macau, even if located outside D:5/Macau; bona fide data-center operators need not cease ongoing use, storage, disposal or servicing of such items 'until further notice from BIS'.
Guidance Regarding Enforcement of License Requirements for Advanced Computing Items for Entities Headquartered in Country Group D:5 and Macau · U.S. Bureau of Industry and Security · 2026-05-31
6. **S306** reported 2026-07-14 — At the 2026-07-14 House Foreign Affairs Committee hearing on the FY27 BIS budget, Under Secretary Jeffrey Kessler said roughly \$10 billion of H200 licenses had been approved but 'very few shipments against licenses for H200s and equivalents have taken place' ('trivial'); press reporting (not Kessler) puts approved buyers at roughly ten Chinese firms; the article also notes an Entity List freeze with no new designations.
China Export Controls Face House Scrutiny · Legis1 (with SCMP corroboration) · 2026-07-14
7. **S307** confirmed 2026-05-20 — Nvidia's Q1 FY2027 results (2026-05-20) state the company 'is not assuming any Data Center compute revenue from China in its outlook' for Q2 FY27.
NVIDIA Announces Financial Results for First Quarter Fiscal 2027 · NVIDIA Newsroom · 2026-05-20
8. **S308** reported 2026-01-14 — On 2026-01-14 Reuters (three sources) reported Chinese customs agents had been told not to allow Nvidia H200 imports; a separate report by The Information said Beijing would approve H200 purchases only in 'special circumstances' (e.g., university R&D partnerships). In July 2026, Reuters/The Information reported Beijing was preparing to authorize fewer than 200,000 H200s in total, restricted to training, with domestic chips prioritized for inference.
Chinese customs told to block H200 imports, report claims · Yahoo Finance (Reuters via Tom's Hardware); TrendForce · 2026-01-14
9. **S309** confirmed 2025-11-12 — BIS's Affiliates Rule (Sept 30, 2025; extending Entity List restrictions to entities 50%-or-more owned by listed parties) is suspended from 2025-11-10 through 2026-11-09 by a final rule published 2025-11-12 (effective 2025-11-10). The Federal Register rule does not itself reference the US-China arrangement; that link is

stated in the White House 2025-11-01 fact sheet.

One Year Suspension of Expansion of End-User Controls for Affiliates of Certain Listed Entities · Federal Register · 2025-11-12

10. **S310** reported 2025-11-07 — MOFCOM/GAC Announcement No. 70 of 2025 (2025-11-07) suspends the six 2025-10-09 announcements (Nos. 55, 56, 57, 58, 61, 62 — rare earths, rare-earth equipment/technology, foreign-origin rare-earth items with Chinese content, lithium batteries and superhard materials) until 2026-11-10; a separate MOFCOM Announcement No. 72 (2025-11-09) suspends Article 2 of Announcement No. 46 of 2024 (gallium/germanium/antimony/superhard-material export ban to the US) until 2026-11-27.
China Temporarily Suspends Export Controls on Key Raw Materials, Including Rare Earths, Lithium Batteries, and Diamonds · CIRS Group (summarizing MOFCOM Announcement No. 70 of 2025) · 2025-11-07
11. **S311** confirmed 2025-11-01 — Under the 2025-11-01 White House fact sheet on the Busan deal, China committed to 'terminate its various investigations targeting U.S. companies in the semiconductor supply chain, including its antitrust, anti-monopoly, and anti-dumping investigations' and to issue general licenses for rare earths, gallium, germanium, antimony and graphite for US end users.
Fact Sheet: President Donald J. Trump Strikes Deal on Economic and Trade Relations with China · The White House · 2025-11-01
12. **S312** confirmed 2026-05-17 — The 2026-05-14 Trump–Xi Beijing meeting produced no change to chip export controls (USTR Greer told Bloomberg TV 'We did not talk about chip export controls at the meeting'); the 2026-05-17 White House fact sheet does not mention semiconductors, says China 'will address U.S. concerns regarding supply chain shortages related to rare earths and other critical minerals, including yttrium, scandium, neodymium, and indium', creates a US-China Board of Trade and Board of Investment, and says Xi will visit Washington in fall 2026.
Fact Sheet: President Donald J. Trump Secures Historic Deals with China, Delivering for American Workers, Farmers, and Industry · The White House · 2026-05-17
13. **S313** reported 2026-07-14 — As of 2026-07-14 the Senate FY2027 NDAA manager's amendment included the AI OVERWATCH Act, the Chip Security Act (location verification on exported AI chips) and the MATCH Act (chokepoint SME controls), per ARI; the House version H.R. 6875 was ordered reported by HFAC 42–2 on 2026-01-21 and S.4456 was introduced 2026-04-30.
Senate NDAA Takes Major Step to Strengthen AI Chip Export Controls · Americans for Responsible Innovation · 2026-07-14
14. **S314** reported 2026-07-15 — On the tools side, EUV lithography remains blocked to China and China's share of ASML system sales fell to about 14% in Q2 2026 (from about 36% in Q4 2025), while a bipartisan MATCH Act (introduced 2026-04-02) would tighten SME sales/servicing to China with a 150-day window for allies to align. ASML shares fall after hiking sales forecast for second time this year on strong AI chip demand · CNBC · 2026-07-15
15. **S315** inferred Managed licensing continues (status-quo muddle-through) — the H200-class case-by-case regime with the 25% Section 232 tariff persists, Blackwell/Rubin stay blocked, and both sides roll over the November 2026 truce deadlines.
analyst judgment — no external source
16. **S316** inferred Renewed tightening — the truce lapses or Congress codifies restrictions, producing new US controls (Entity List additions, Affiliates Rule snap-back, SME/MATCH-style rules) and Chinese counter-measures.
analyst judgment — no external source
17. **S317** inferred Broad de-escalation/deal — a summit package (Xi visit, APEC, G20) trades wider chip access (formal H200 framework, possibly a Blackwell-derived China SKU) for durable Chinese rare-earth/critical-mineral commitments and closure of probes into US chip firms.
analyst judgment — no external source

